DIVISION BENCH **ITEM NO.2**

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.18/ALD/2023 IN CA (CAA) No.15/ALD/2023
(Second Motion)

Under Section 230-232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation :

ASTHA TRADECO INDIA PRIVATE LIMITED
(CIN: U51109UP1986PTC008450)

……. **Petitioner / Transferor Company No.1**

AND

THE CITI CLUB PRIVATE LIMITED
(CIN: U55101UP1992PTC014306)

……. Petitioner / Transferor Company No.2

WITH

CHEMI CHROME INDUSTRIES PRIVATE LIMITED
(CIN: U24222UP1965PTC003099)

……. **Petitioner/ Transferee Company**

Order dated : 5th October, 2023

Coram:
HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)
HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

Present :

For the Petitioner Companies : Sh. Shahsi Kant Gupta, PCS

For the ROC, U.P. Kanpur : Sh. Anurup Dutt, Proxy for
Sh. Shivendra Bahadur Singh, CGSC

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ORDER

1. This is a joint Second Motion company petition filed by the Petitioner Companies, namely, **Astha Tradeco India Private Limited** (Petitioner/ Transferor Company No.1), **The Citi Club Private Limited** (Petitioner/ Transferor Company No.2) with **Chemi Chrome Industries Private Limited** (Petitioner/ Transferee Company) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

2. The petitioners companies have prayed for sanctioning of the Scheme of Amalgamation in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections. The First Motion application was filed seeking directions for dispensation with the requirement for convening the meetings of the Creditors of the Applicant/ Transferor Company No.1 as it is stated in the application that there are no Secured and Unsecured Creditors in the Applicant/ Transferor Company No.1, meetings of Secured Creditors of Applicant/ Transferor Company No.2 as there are no Secured Creditors in the Applicant/ Transferor Company No.2, meetings of Unsecured Creditors in the Applicant/ Transferor Company No.2 and meetings of Unsecured Creditors of Applicant/ Transferee Company. It was further prayed to convene the meetings of Equity Shareholders of Applicant/ Transferor Company No.1, Applicant/ Transferor Company No.2 and Applicant/ Transferee Company vide CA (CAA) No.15/ALD/2023 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act'), necessary directions were issued on 14th July, 2023 and in the said order, the meetings of Secured and Unsecured Creditors of all the petitioner companies were directed to dispense with. Additionally, the meetings of Equity Shareholders of Applicant/ Transferor Company No.1, Applicant/ Transferor Company No.2 and Applicant/ Transferee Company were directed to be convened separately for the reasons mentioned in the aforesaid order.

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3. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 14th July, 2023.

4. Notices are accordingly issued in the present petition to be served by the Petitioner Companies through speed post within two weeks to the following Authorities along with a copy of this petition in soft copy as well as hard copy :-

(i) Central Government through Regional Director (Northern Region), New Delhi;

(ii) Registrar of Companies, Uttar Pradesh, Kanpur;

(iii) Official Liquidator, Allahabad; and

(iv) Jurisdictional Income Tax Authority by mentioning the PAN of the Company.

5. Additionally, notice be issued to the concerned Assessing Officer of Income Tax Department as informed by the Ld. Counsel for the petitioner as per the PAN of the petitioner company.

6. Ld. Proxy Counsel, Sh. Anurup Dutta for Ld. CGSC, Sh. Shivendra Bahadur Singh is present physically who accepts notice on behalf of ROC, Kanpur and therefore waives service. Ld. Authorized Representative for the Petitioner Companies is directed to supply the copy of the petition to the Ld. Counsel representing the ROC within a week.

7. In addition to the above public notices, the notice of hearing will also be advertised in "The Pioneer" in English and "Rashtriya Sahara" in Hindi language, having wide circulation over the area where the registered office of the companies are situated by not less than 10 days before the next date fixed for hearing.

8. The petitioner companies shall at least 7 days before the date of hearing of the petition, file an affidavit of service regarding newspaper publication, with newspaper clippings, as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may be filed within 30 days of receipt of notice

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failing which, it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

9. The next date of hearing of the petition shall be on 22nd November, 2023 for further consideration of the approval of the scheme as contemplated between the petitioner companies.

10. The registry shall also report before the date fixed for next hearing, as to whether any objections have been received to the proposed 'Scheme'.

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(Ashish Verma)
Member (Technical)

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(Praveen Gupta)
Member (Judicial)

5th October, 2023

Kavya Prakash Srivastava
(Stenographer)